

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eliana Behar	Team: Squad #01	CCRB Case #: 202400496	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/10/2024 4:52 PM	Location of Incident: West 104th Street between West End Avenue and Riverside Drive	18 Mo. SOL 7/10/2025	Precinct: 24		
Date/Time CV Reported Tue, 01/16/2024 12:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 01/16/2024 2:00 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Richard Mcknight	04984	955170	NARCBMN
2. DT3 Francis Conejo	06731	954664	NARCBMN
3. DT2 Raymond Low	04743	936985	NARCBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Alan Hassel	02027	950571	024 PCT
2. DT3 Ross Distefano	03084	947738	NARCBMN
3. DT3 Jose Genao	01713	948031	NBMN MAJOR

Officer(s)	Allegation	Inv. Div. Recommendation
A . DT3 Richard Mcknight	Force: Detective Richard Mcknight pointed his gun at § 87(2)(b)	A . Unable to Determine
B . DT3 Francis Conejo	Force: Detective Francis Conejo pointed his gun at § 87(2)(b)	B . Unable to Determine
C . DT3 Francis Conejo	Discourtesy: Detective Francis Conejo spoke discourteously to § 87(2)(b)	C . Unable to Determine
D . DT3 Richard Mcknight	Abuse: Detective Richard Mcknight questioned § 87(2)(b)	D . Within NYPD Guidelines
E . DT3 Francis Conejo	Force: Detective Francis Conejo used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . DT3 Richard Mcknight	Force: Detective Richard Mcknight used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . DT2 Raymond Low	Force: Detective Raymond Low used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . DT3 Francis Conejo	Abuse: Detective Francis Conejo searched the vehicle in which § 87(2)(b) was an occupant.	H . Substantiated
I . DT3 Richard Mcknight	Abuse: Detective Richard Mcknight searched the vehicle in which § 87(2)(b) was an occupant.	I . Substantiated
J . DT3 Richard Mcknight	Abuse: Detective Richard Mcknight frisked § 87(2)(b)	J . Substantiated
K . DT3 Francis Conejo	Abuse: Detective Francis Conejo searched § 87(2)(b)	K . Unable to Determine

Officer(s)	Allegation	Inv. Div. Recommendation
L . DT3 Richard Mcknight	Abuse: Detective Richard Mcknight searched § 87(2)(b)	L . Unable to Determine
M . DT3 Richard Mcknight	Abuse: Detective Richard Mcknight searched § 87(2)(b)	M . Unable to Determine
N . DT3 Francis Conejo	Abuse: Detective Francis Conejo searched § 87(2)(b)	N . Unable to Determine
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 16, 2024, § 87(2)(b) filed this complaint with the CCRB by phone.

On January 10, 2024, at approximately 4:52pm, § 87(2)(b) was driving on West 104th Street between West End Avenue and Riverside Drive in Manhattan when Detective Richard McKnight and Detective Francis Conejo, from Narcotics Borough Manhattan North, approached § 87(2)(b) vehicle with their guns pointed at him (**Allegations A-B: Force—Unable to Determine**). Det. Conejo told § 87(2)(b) to roll down his fucking windows (**Allegation C: Discourtesy—Unable to Determine**). Det. McKnight asked § 87(2)(b) if he had been smoking (**Allegation D: Abuse of Authority—Within NYPD Guidelines**). Det. Conejo, Det. McKnight, and Det. Raymond Low pulled § 87(2)(b) out of the vehicle and dragged him to the back of the vehicle (**Allegations E-G: Force—Within NYPD Guidelines**). Det. Conejo and Det. McKnight searched § 87(2)(b) vehicle (**Allegation H-I: Abuse of Authority—Substantiated**). Det. McKnight frisked § 87(2)(b) (**Allegation J: Abuse of Authority—Substantiated**). Det. Conejo and Det. McKnight searched § 87(2)(b) (**Allegation K-L: Abuse of Authority—Unable to Determine**). Det. McKnight and Det. Conejo searched § 87(2)(b) (**Allegations M-N: Abuse of Authority—Unable to Determine**). § 87(2)(g), § 87(4-b) received a summons for tinted windows.

There were no Body Worn Camera (BWC) videos from the beginning of the incident as Narcotics Borough Manhattan North was not equipped with BWCs at the time of the incident. The investigation obtained BWC footage for Sergeant Alan Hassel, of the 24th Precinct, who responded later to issue the summons (Board Review 04). The investigation obtained cellphone video footage (Board Reviews 02-03, 10-11).

Findings and Recommendations

Allegation (A) Force: Detective Richard McKnight pointed his gun at § 87(2)(b)

Allegation (B) Force: Detective Francis Conejo pointed his gun at § 87(2)(b)

Allegation (C) Discourtesy: Detective Francis Conejo spoke discourteously to § 87(2)(b)

§ 87(2)(b) was driving his white Mercedes Benz, which had a temporary license plate and tinted windows that are 70% dark, westbound on West 101st Street towards Riverside Drive. Inside his vehicle was § 87(2)(b) who was seated in the front passenger seat, and § 87(2)(b) who was seated in the backseat. At Riverside Drive § 87(2)(b) made a right turn, heading northbound. § 87(2)(b) noticed that there was a black unmarked SUV following him. At the intersection of Riverside Drive and West 102nd Street this unmarked vehicle cut in front of him and abruptly stopped, causing § 87(2)(b) to step on his brake pedal and stop the vehicle. Another unmarked vehicle stopped behind § 87(2)(b) vehicle. Two plainclothes officers exited the vehicle in front of him and pointed their guns at § 87(2)(b). Det. Conejo approached the front driver's side window and told § 87(2)(b) to "roll down his fucking windows" (Board Review 01).

The investigation was unable to obtain statements from § 87(2)(b) and § 87(2)(b).

Det. Conejo, Det. Low, and Det. McKnight's statements were consistent in that they were all together in one unmarked SUV when they stopped § 87(2)(b) vehicle, and none of the officers approached § 87(2)(b) vehicle with their firearms drawn or saw any officer approach

with their firearms drawn or pointed. Det. Low stated that he was the driver of the vehicle and pulled in front of § 87(2)(b) vehicle when performing the vehicle stop. He stated that Det. McKnight and Det. Conejo exited the vehicle and approached § 87(2)(b) vehicle while Det. Low remained inside the vehicle to ensure that § 87(2)(b) did not drive off. Additionally, Det. McKnight stated that he and his partners asked § 87(2)(b) to roll down his windows, however none of the officers told § 87(2)(b) to roll his fucking windows down nor did they hear any officers state this to him (Board Reviews 05-08).

There is no video footage capturing the officers approaching § 87(2)(b) vehicle.

§ 87(2)(g)

It is therefore recommended that **Allegations A-C** be closed as **Unable to Determine**.

Allegation (E) Force: Detective Francis Conejo used physical force against § 87(2)(b)

Allegation (F) Force: Detective Richard McKnight used physical force against § 87(2)(b)

Allegation (G) Force: Detective Raymond Low used physical force against § 87(2)(b)

§ 87(2)(b) stated that Det. Conejo asked § 87(2)(b) and § 87(2)(b) to step out of the vehicle, and § 87(2)(b) explained that he could not walk without his wheelchair. § 87(2)(b) who identifies as a paraplegic because he cannot move one of his legs, did not step out of the vehicle. Det. Conejo opened the driver's side door and pulled § 87(2)(b) out of the vehicle and dragged him to the back of the vehicle. § 87(2)(b) told the investigation that one of his legs is paralyzed, however his other leg works, and he can walk short distances by swinging his paralyzed leg forward. § 87(2)(b) sustained back pain and scratches on his body as a result of being dragged but did not seek medical treatment (Board Review 01).

Cellphone video footage taken by § 87(2)(b) (Board Review 03), at 00:32, captures audio of an officer tell § 87(2)(b) that he needs to step out so they can search the vehicle to which § 87(2)(b) responds that he needs his wheelchair and cannot step out of the vehicle as he is a paraplegic. An officer tells § 87(2)(b) that they will help him out. At 01:05 § 87(2)(b) rolls up his left pant leg above his knee, exposing his bare leg and his left calf appears to be atrophied. § 87(2)(b) says again that he is a paraplegic. Officers ask § 87(2)(b) to step out of the vehicle four more times and tells him that if he does not come out of the vehicle they will take him out of the vehicle. Then at 01:19, the cellphone video faces Det. Conejo, the officer wearing the Yankees hat and pink sweatshirt, who grabs onto § 87(2)(b) jacket. At 01:24 § 87(2)(b) legs are inside the vehicle however his entire upper body is outside of the vehicle. The angle of the footage only captures § 87(2)(b) legs below his knees. At 01:34 § 87(2)(b) left leg is outside of the vehicle on the ground and an officer grabs his right leg and removes his leg and places it outside the vehicle. At this time an officer tells § 87(2)(b) that he has a video of him walking. At 01:41 § 87(2)(b) lower legs are seen dragging on the pavement.

Cellphone video footage taken by § 87(2)(b) (Board Review 02), who is seated in the front passenger seat of the vehicle, shows at 00:01 Det. Conejo, and Det. Low, the bald officer, pulling § 87(2)(b) out of the driver's seat of the vehicle as § 87(2)(b) yells that he is not resisting. Det. McKnight, who is wearing a gray beanie, is standing behind them. At 00:10, § 87(2)(b) legs are inside the vehicle, however the upper half of his body is outside the vehicle and Det. Conejo is holding onto his right arm and Det. Low is holding onto his left arm. At 00:15 Det. Low

grabs ahold of § 87(2)(b) legs and pulls them out of the vehicle, while Det. McKnight and Det. Conejo are holding onto his upper body. At 00:21 Det. McKnight drags § 87(2)(b) by his upper body to the back of the vehicle.

Det. Conejo, Det. McKnight, and Det. Low were consistent in their testimony that they were surveilling the Douglas Houses located on 101st Street and Manhattan Avenue where they observed § 87(2)(b) § 87(2)(b). The officers observed § 87(2)(b) white Mercedes Benz, saw § 87(2)(b) step out of the driver's side of the vehicle, walk around the vehicle, and return to the driver's side vehicle where he stepped inside the vehicle. § 87(2)(b) did not appear to have any difficulty walking and none of the officers were aware of him being paraplegic. § 87(2)(b) drove off and the officers followed him and pulled him over for window tints. The officers were consistent in that Det. Conejo asked § 87(2)(b) to step out of the vehicle numerous times, however § 87(2)(b) refused to exit the vehicle and yelled that he did not want to exit the vehicle. § 87(2)(b) stated that he needed a wheelchair and was paraplegic, however Det. Conejo, Det. Low, and Det. McKnight all believed this to be untrue as they saw § 87(2)(b) walking on two feet about 15 minutes prior where he did not appear to have any physical disabilities (Board Reviews 05-07).

Det. Conejo stated that he physically pulled on § 87(2)(b) arms to get him out of the vehicle and § 87(2)(b) dropped the weight of his body onto the ground, making it so Det. McKnight had to pull him to the back of the vehicle (Board Review 07). Det. Low assisted Det. Conejo in pulling § 87(2)(b) out of the vehicle by holding onto § 87(2)(b) lower body as § 87(2)(b) was not exiting the vehicle on his own and said he could not walk. After they got him out of the vehicle § 87(2)(b) refused to walk, made his body limp, and kept telling the officers he could not walk (Board Review 06).

Det. McKnight stated that he, Det. Conejo, and Det. Low physically brought § 87(2)(b) out of his vehicle since he would not exit on his own and stated that he was a paraplegic and could not walk. Det. McKnight placed his hands underneath § 87(2)(b) armpits and pulled him to the rear of the vehicle since he would not walk on his own. Det. McKnight knew that § 87(2)(b) was capable of walking given several previous encounters with § 87(2)(b) where he has seen him walk, bend, and squat down (Board Review 05).

Det. Conejo provided a photo to the investigation taken on his department cellphone showing, who he identified as, § 87(2)(b) who is wearing a dark jacket, standing outside of the driver's side of a white sedan and § 87(2)(b) standing on the passenger side of the vehicle dressed in a black jacket and black sweatpants. The text at the top of the photo shows that it was taken on January 10, 2024 at 4:46pm. § 87(2)(b) face and the license plate of his vehicle are not visible (Board Review 16).

According to *People v. Robinson* 74 N.Y.2d 773 (1989) officers can require a driver or occupant of a vehicle to step outside of a car at any point during a lawful car stop (Board Review 13).

Patrol Guide Procedures 221-01 and 221-02 govern the use of force by officers. Officers must consider the totality of the circumstances in determining whether the use of force is reasonable, including: (a) the nature and severity of the crime/circumstances; (b) the actions taken by the subject; (c) the duration of the actions; (d) the immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders; (e) whether the subject is actively resisting custody; (f) whether the subject is attempting to evade arrest by flight; (g) the number of subjects in comparison to the number of MOS; (h) the size, age, and condition of the subject in comparison to the MOS; (i) the subject's violent history (if known); (j) the presence of a hostile crowd or

agitators; and (k) whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence. Officers must assess the situation continually, adjust the use of force as necessary, and apply no more than the reasonable force necessary to gain control (Board Reviews 24-25).

Cell phone videos corroborate that officers asked § 87(2)(b) several times to step out of the vehicle, which he failed to do, and informed him that if he did not get out of the vehicle, they would take him out. § 87(2)(g)

It is therefore recommended that **Allegations E-G** be closed as **Within NYPD Guidelines**.

Allegation (D) Abuse of Authority: Detective McKnight questioned § 87(2)(b)

Allegation (H) Abuse of Authority: Detective Francis Conejo searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (I) Abuse of Authority: Detective Richard McKnight searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (J) Abuse of Authority: Detective Richard McKnight frisked § 87(2)(b)

Allegation (K) Abuse of Authority: Detective Francis Conejo searched § 87(2)(b)

Allegation (L) Abuse of Authority: Detective Richard McKnight searched § 87(2)(b)

Allegation (M) Abuse of Authority: Detective Richard McKnight searched § 87(2)(b)

Allegation (N) Abuse of Authority: Detective Francis Conejo searched § 87(2)(b)

§ 87(2)(b) stated that during the vehicle stop, § 87(2)(b) who was seated in the backseat of the vehicle, told the officers that he was on probation for a gun charge. § 87(2)(b) noticed Det. Conejo looking inside his vehicle where he had marijuana blunts in his ashtray. The blunts were not lit, and there was no odor of marijuana coming from his vehicle. Det. Conejo asked § 87(2)(b) if he was rolling a blunt and smoking and § 87(2)(b) responded that the blunt inside his vehicle was not yet rolled and that he had not been smoking. § 87(2)(b) who was seated in the front passenger seat of the vehicle, had an unlit blunt in her hand at the time of the vehicle stop, however no officers questioned her about whether she was smoking. § 87(2)(b) stated that no one inside the vehicle was high or intoxicated and aside from blunts in the ashtray, there were no drugs or firearms located inside the vehicle. While § 87(2)(b) was seated outside at the back of the vehicle, § 87(2)(b) stated that Det. Conejo and Det. McKnight searched his vehicle, but did not specify how or where they searched. When § 87(2)(b) and § 87(2)(b) were outside of the vehicle, Det. Conejo and Det. McKnight each searched § 87(2)(b) and § 87(2)(b) individually by reaching their hands into their pants pockets (Board Review 01).

Cellphone video footage taken by § 87(2)(b) (Board Review 03), begins with audio of an unidentified officer asking § 87(2)(b) if he had been smoking to which he responds, “it hasn’t even been rolled yet.” The video is not facing towards the officer who is speaking to § 87(2)(b). The officer then asks § 87(2)(b) if he has any other narcotics or weapons, and he says no. The officer mentions that the male in the back is on parole or probation for a gun. At 03:58 § 87(2)(b) is sitting on the ground outside of his vehicle. The video captures § 87(2)(b) who is

wearing jeans and a black jacket, standing outside of the vehicle and Det. McKnight is holding onto § 87(2)(b) by the front of his jacket. At no point does the video footage show Det. McKnight, or any officer frisk or search § 87(2)(b) nor does any officer search § 87(2)(b). At 04:08 Det. Conejo has both of his hands inside the window of § 87(2)(b) vehicle. Det. Conejo then removes his arms from inside his vehicle window and has a cellphone in his hand.

The Stop Report noted that Det. McKnight observed § 87(2)(b) who is known to the department, in the rear passenger seat of the vehicle with his body lunged forward towards the seat pocket, to which Det. McKnight believed to be an attempt to conceal a weapon or contraband. Det. McKnight conducted a search of the plain view area of the rear passenger seat as well as the seat pocket after observing marijuana on the seat and loose marijuana on the floor where § 87(2)(b) was seated. Det. McKnight had § 87(2)(b) step outside of the vehicle and performed an outer garment frisk of his waistband and jacket pockets. The report stated that the basis for the frisk was that § 87(2)(b) is known to carry weapons. The Stop report notes that he was not searched, and that no weapon was recovered (Board Review 14).

Det. Conejo took photos of the interior of § 87(2)(b) vehicle which shows a pack of rolling papers, a few blunts with one that appears burnt, and cigarettes inside § 87(2)(b) open center console and on top of the backseat of his vehicle which shows a piece of rolling paper with loose marijuana (Board Review 17).

Det. McKnight stated that he was familiar with both § 87(2)(b) and § 87(2)(b) from past incidents as they are both subjects in an active violence and narcotics investigation he is conducting. He stated that he arrested § 87(2)(b) in the past for illegal possession of a firearm (Board Review 32). When he was surveilling at 101st Street and Manhattan Avenue, prior to this incident, he observed § 87(2)(b) enter § 87(2)(b) vehicle. § 87(2)(b) did not have any bulges on his person. When performing the vehicle stop, Det. McKnight approached the passenger side of the vehicle and the window was rolled down. Det. McKnight observed § 87(2)(b) in the rear passenger side of the vehicle with his upper body leaned forward towards the front passenger side chair. Det. McKnight could not see § 87(2)(b) body from the chest down and did not know what § 87(2)(b) was doing. § 87(2)(b) waistband was not visible while he was seated in the vehicle leaning forward. Det. McKnight thought it was possible that § 87(2)(b) was trying to conceal a firearm or narcotics, especially because he had arrested him in the past for a firearm and because there was loose marijuana on the floor of the vehicle by § 87(2)(b) feet and on the seat of the vehicle next to him. Det. McKnight also smelled a strong odor of marijuana coming from the vehicle and observed multiple partially smoked burnt marijuana cigarettes in the center console of the vehicle. Det. McKnight went to the driver's side of the vehicle and asked § 87(2)(b) if he was under the influence of narcotics or alcohol due to his irate behavior, but he did not recall § 87(2)(b) response. Based on § 87(2)(b) behavior and that Det. McKnight had observed lit marijuana cigarettes, he asked § 87(2)(b) to step out of the vehicle. Det. McKnight also asked § 87(2)(b) to step out of the vehicle and Det. McKnight frisked § 87(2)(b) waistband and the outside of his pockets. Det. McKnight did not feel anything that resembled a weapon when frisking § 87(2)(b)'s pockets and he did not go inside any of § 87(2)(b) pockets. Det. McKnight frisked § 87(2)(b) due his body positioning inside of the vehicle and that he had previously been arrested for the possession of a firearm. Det. McKnight also searched the rear passenger side of the vehicle where § 87(2)(b) was seated for weapons and narcotics. The only narcotics he observed in the backseat was an unrolled marijuana joint. Det. McKnight never searched § 87(2)(b) nor did he observe any other officer search him.

When Det. Conejo approached the driver's side of § 87(2)(b) vehicle he observed a burnt clip of marijuana in the front center console and fresh unburnt marijuana in the backbeat of the vehicle.

He did not observe anyone inside the vehicle smoking marijuana, however he smelled an odor which he recognized as marijuana based on his experience and training as a narcotics officer. Det. Conejo stated that it was possible § 87(2)(b) was high since he observed the burnt clip of marijuana in the center console next to him, and because he was behaving erratic by yelling at the officers. Det. Conejo stated that he did not search the vehicle nor did he observe any other officers search the vehicle. The only point that Det. Conejo leaned inside the window of the vehicle was when he took photos of the interior of the vehicle and he stated that leaning inside the vehicle to take photographs did not constitute a search. Det. Conejo stated that he took the photos for evidence since Det. McKnight is involved in a long-term narcotics investigation into § 87(2)(b) (Board Review 07). Det. Conejo and Det. Low both stated that they did not search § 87(2)(b) or § 87(2)(b) nor did they see any other officer search either of them (Board Reviews 06, 07).

According to *People v. Robinson* 74 N.Y.2d 773 (1989) officers can require a driver or occupant of a vehicle to step outside of a car at any point during a lawful stop (Board Review 13).

According to *People v. Hernandez*, 238 A.D.2d 131 (N.Y. App. Div. 1997), an officer breaching the plane of the car doorway with his body or arm to reach inside the vehicle constitutes a search of a vehicle (Board Review 19).

People v. Belton 55 N.Y. 2d 49 (1982) states that under the automobile exception to the warrant requirement, a warrantless vehicle search may be conducted when there is probable cause that the vehicle contains a weapon, contraband, or evidence of a crime (Board Review 12).

According to *People v. Newman*, 96 A.D.3d 34 (1st Dept., 2012) an officer's assertion that a car's occupants engaged in "furtive" movements, alone, cannot justify a limited vehicular search for officer safety. Two factors are required to uphold an officer's limited search of an area where they saw an occupant reaching: (1) movements within a car suggesting that the defendant was reaching for something that might be a weapon and (2) some other suggestive factor(s) that justify the limited intrusion of searching the area where the person was reaching (Board Review 31).

People v. Carvey, 89 N.Y.2d 707, 711 (1997) states that an officer may conduct a limited protective search for weapons in those sections of a vehicle within the reachable area of the suspect even in the absence of probable cause where facts revealed during a proper inquiry or other information gathered during the course of the encounter lead to the conclusion that there is a substantial likelihood of a weapon located within the vehicle that presents an actual and specific danger to the officer's safety sufficient to justify a further intrusion, notwithstanding the suspect's inability to gain immediate access to that weapon after they have been removed from the vehicle. However, reasonable suspicion of such weapon's presence alone will not suffice (Board Review 29).

NYPD Patrol Guide Procedure 212-11 states that officers may ask accusatory questions as part of a common law right of inquiry (level 2 encounter) based on "founded suspicion that criminal activity is afoot." Founded suspicion is defined as "some present indication of criminality based on observable conduct or reliable hearsay information." This patrol guide procedure also states that a frisk is "authorized when the member of the service reasonably suspects the person is armed and dangerous. This includes situations in which the officer reasonably suspects that the person has committed, is committing, or is about to commit a violent crime or when an officer observes something on the person that she/he reasonably suspects is a weapon (Board Review 18).

According to New York Penal Law § 222.05, for recreational purposes it is legal for adults 21 and over to possess/use/smoke/ingest up to three ounces of cannabis and 24 grams of concentrated cannabis. No finding or determination of reasonable cause to believe a crime has been committed

shall be based solely on evidence of the odor of cannabis, or the possession of or suspicions of cannabis (Board Review 15).

New York Vehicle & Traffic Law §1227 prohibits the consumption of cannabis in a motor vehicle located upon the public highway. Any operator or passenger violating this section shall be guilty of a traffic infraction (Board Review 28). New York State Vehicle & Traffic Law §1192(4) prohibits the operation of a motor vehicle while the person's ability to operate such a motor vehicle is impaired by the use of a drug (Board Review 30).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

Cell phone video showed that Det. Conejo breached the plane of § 87(2)(b) [REDACTED] vehicle by placing both of his arms inside the vehicle to take photos of the marijuana inside of his vehicle, § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation H** be closed as **Substantiated**.

Det. McKnight's admitted frisk of § 87(2)(b) [REDACTED] and subsequent search of the rear passenger seat § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Is it therefore recommended that **Allegations I and J** be closed as **Substantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations K-N** be closed as **Unable to Determine**.

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
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- [REDACTED]**
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- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- [REDACTED]**
- Detective Francis Conejo has been a member of service for 11 years and has been a subject in eight CCRB complaints and 18 allegations, of which one was substantiated.:
- 201408446 involved a substantiated allegation of property damage against Det. Conejo. The Board recommended charges and Det. Conejo was found not guilty. § 87(2)(g)
- Detective Raymond Low has been a member of service for 19 years and has been a subject in eight CCRB complaints and 21 allegations, of which three were substantiated.:
- 20180662 involved a substantiated allegation of a strip search against Det. Low. The Board recommended charges and Det. Low was found not guilty.
 - 202304463 involved substantiated allegations of restricted breathing and untruthful statement against Det. Low. The Board recommended Command Discipline B and charges and the NYPD has not yet imposed discipline. § 87(2)(g)
- Detective Richard McKnight has been a member of service for 11 years and has been a subject in seven CCRB complaints and 22 allegations, of which eight were substantiated.:
- 201506951 involved a substantiated allegation of a vehicle search against Det. McKnight. The Board recommended formalized training, and the NYPD imposed formalized training.
 - 202005973 involved substantiated allegations of stop, question, frisk, and refusal to provide RTKA card against Det. McKnight. The Board recommended Command Discipline B and the NYPD imposed no discipline.

- 202206453 involved substantiated allegations of stop, refusal to provide name, refusal to provide shield, and failure to provide RTKA card against Det. McKnight. The Board recommended Command Discipline B and the NYPD imposed a loss of three vacation days. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 31, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 21).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 1

Investigator:	<u>Eliana Behar</u>	<u>SI Behar</u>	<u>03/10/25</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u></u>	<u>03.11.25</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date